



Case Decision

Décision du jury

As of MON 29 JUL 2024 at 20:44

CASE No. 7

Event: Women's Skiff	Race: 4
Initiator: JPN	Respondent: CHN
Protest details: At the time 30 seconds before starting signal, JPN and CHN were starboard tack and overlapped. JPN were leeward of CHN. CHN bore away and contacted to JPN. It caused serious damage at right wing of JPN. CHN took one turn penalty. The start was general recalled.	
Procedural matters: 1. JPN was represented by Misaki Tanaka (helm). 2. CHN was represented by Mengyuan Shan (crew). 3. Zuoru Jiang (support person of CHN) attended the hearing as translator for CHN. 4. Noboru Maesono (support person of JPN) attended the hearing as translator for JPN.	
Facts found: 1. During the first attempt of the starting procedure of race 4 for Women's Skiff there was 6 knots of wind and 40 centimetre high waves. 2. During the last minute before the starting signal, JPN and CHN were stationary on the starboard tack, close to head to wind, in the middle of the starting line and 1.5 boat lengths below the starting line. 3. JPN and CHN were overlapped, with the bow of CHN in line with the middle of the hull of JPN and 2 boat lengths to the windward. 4. At 30s before the starting signal, CHN bore away and sailed towards below the stern of JPN. 5. The front part of the starboard wing of CHN made contact with the rear part of the starboard wing of JPN and slid past it. 6. The contact resulted in a 2 centimetre wide and 6 centimetre long damage in gelcoat of the starboard wing of JPN, with base material of the wing visible. 7. The damage was positioned on the profile of the wing, below the rear toe straps. 8. JPN held her course throughout the incident. 9. Immediately after the contact, CHN took a One-Turn penalty. 10. JPN bore away and started in the race 4. 11. The Race Committee signalled a general recall. 12. JPN sailed in restarted race 4, and races 5 and 6, with race 6 being the last race of the day. 13. JPN did not repair the damage while afloat. 14. The technical staff of JPN intend to repair the damage by the next racing day. 15. There was no injury.	



Case Decision

Décision du jury

As of MON 29 JUL 2024 at 20:44

Conclusion:

1. CHN to windward failed to keep clear of JPN to leeward, and broke RRS 11.
2. CHN did not avoid contact when it was reasonably possible, and broke RRS 14.
3. It was not reasonably possible for JPN the right-of-way boat to avoid contact with CHN when it was clear that CHN was not keeping clear. JPN did not break RRS 14.
4. Since the damage did not reduce the safety of the crew, did not adversely affect JPN's performance in a significant way, and repair will not be a significant amount relative to the market value of the boat, nor will the boat's value be diminished after the repair, the damage that JPN sustained is not serious.
5. CHN took an applicable penalty according to RRS 44.1

Rule(s) applicable:

RRS 11, 14, 36, 44.1, and 64.2(a).

Decision:

Protest upheld. Since CHN took an applicable penalty, she is not further penalized.

Jury:

Andrus Poksi (EST), Mina Stanikic (SRB), Luke Scott (RSA), Iskra Yovkova (BUL), Jamie Sutherland (NZL)

Signed:

Andrus Poksi, Chairman

Decision Issued: 29 JUL 2024 Time: 19:23

Legend:

No. Number